2024 M L D 1156

[Lahore]

Before Shahid Bilal Hassan, J

REHANA SHAFQAT---Petitioner

Versus

AFIRA BUTT and others---Respondents

Civil Revision No. 49064 of 2022, heard on 24th October, 2023..

(a) Oaths Act (X of 1873)---

----Ss. 8, 9, 10 & 11---Special oath, administration of---Binding upon the party---Arrangement for disposal of suit/case as agreed by the parties is a sort of a compromise, which is lawful and permissible; therefore, the same cannot be assailed through appeal.

Rashid Mahmood v. Mst. Rashida Begum and 2 others 2010 YLR 218 rel.

(b) Succession Act (XXXIX of 1925)---

----S.373---Oaths Act (X of 1873), Ss. 8, 9, 10 & 11---West Pakistan Civil Services Pension Rules, 1963, Rr. 4.7 & 4.10---Pensionary benefits---Succession certificate---Tarka---Legal heirs, entitlement of---Special oath, administration of---After death of civil servant, petitioner applied for issuance of succession certificate about pensionary benefits of her deceased husband, who was an employee in the Pakistan Telecommunication Company Limited---Petitioner contended that deceased had already divorced his second wife/respondent No. 1, therefore she was not entitled to any pensionary benefits---Such claim was resisted by the respondents---Trial Court held the two wives and children entitled for pensionary benefits---Petitioner being aggrieved preferred an appeal---Appellate Court modified the order and entitled both wives only for pensioner benefits---Matter was decided on Special Oath---Held that nothing was on record to divulge that the petitioner was prompted by the respondents or by the Trial Court to arrange the disposal of lis on the basis of special oath, rather it was her sweet will to get decided the matter in terms of Special Oath--- Therefore, said offer being made voluntarily and accepted by the respondent No. 1 was binding upon the petitioner---Offer so made by the petitioner to the respondent No. 1 was binding upon her and she could not resile from the same, and she had to face the consequence of the same---Revision petition in hand came to naught and the same stood dismissed, in circumstances.

Tasaduq Hussain v. Additional District Judge, District Vehari and 2 others 2010 YLR 3283; Maulana Muhammad Idrees v. Fazal Said Khattak and others 2009 CLC 241 and Inayat Hussain alias Inayatullah v. Chaudhry Sultan Ahmad 2010 CLC 596 rel.

(c) Succession Act (XXXIX of 1925)---

----S.373---West Pakistan Civil Services Pension Rules, 1963, Rr. 4.7 & 4. 10---Pensionary benefits---Succession certificate---Tarka---Legal heirs, entitlement of---

After death of civil servant, petitioner applied for issuance of succession certificate about pensionary benefits of her deceased husband, who was an employee in the Pakistan Telecommunication Company Limited---Petitioner contended that deceased had already divorced his second wife/respondent No. 1, therefore she was not entitled to any pensionary benefits---Such claim was resisted by the respondents---Trial Court held the two wives and children entitled for pensionary benefits---Petitioner being aggrieved preferred an appeal---Appellate Court modified the order and held both wives only entitled for pensionary benefits---Validity---Petitioner took a stance that deceased divorced the respondent No.1 through Talaq-e-Bian on 13.12.2002 but as per observations of the Appellate Court, there were two divorce deeds of different dates on record of the concerned Union Council: one was issued on 13.12.2002 and other one issued on 03.09.2004 by the deceased in presence of two witnesses but the petitioner could not produce both the said witnesses in support of her contention especially after a categorical denial and special oath by the respondent No. I in pursuance to the offer of the present petitioner---Other aspect of keeping the purported proceedings of issuance of certificate of Talaq for a considerable period of seven years also spoke volumes of the authenticity and veracity of the same, as the first notice of Talaq was issued on 28.05.2011 and divorce effectiveness certificate was issued on 05.10.2011---Moreover, it was also not clear that on which divorce deed the same was issued, because the Appellate Court found two divorce deeds of different dates in the record of Union Council---In such view of the matter, the Appellate Court had rightly adjudged the matter in hand and had not committed any illegality or irregularity while upholding the order passed by the Trial Court, warranting interference by High Court in exercise of revisional jurisdiction---Revision petition in hand came to naught and the same stood dismissed, in circumstances.

Rana Muhammad Nawaz for Petitioner.

Chaudhry Tanveer Zahoor Gujjar for Respondents.

Date of hearing: 24th October, 2023.

JUDGMENT

SHAHID BILAL HASSAN, J.---Tersely, the instant revision petition arises out of the proceedings brought by the present petitioner through an application for issuance of succession certificate about the pensionary benefits, etc. of her deceased husband namely Shafqat Rasool, who was an employee in the Pakistan Telecommunication Company Limited. In the said application, the Pakistan Telecommunication Company Limited, Public at large and the respondents were impleaded as respondents and it was averred that the deceased Shafqat Rasool had already divorced his second wife i.e. respondent No.1 on 13th December, 2002, therefore, she was not entitled to any pensionary benefits. This claim of the petitioner was resisted by the respondents. Evidence of the parties was recorded. The learned trial Court vide impugned order dated 11.02.2019 held entitled two wives and children for pensionary benefits. The petitioner being aggrieved preferred an appeal. The learned appellate Court modified the order and entitled both wives only for pensionary benefits vide judgment dated 15.05.2019. The petitioner challenged the said order and judgment by filing C.R.No.37749 of 2019,

wherein this Court summoned the Secretary Union Council concerned alongwith record and after perusal of record, set aside the judgment dated 15.05.2019 and remanded the case to the learned appellate Court with direction to decide the appeal afresh after taking into consideration the facts. However, the learned appellate Court vide impugned judgment dated 30.06.2022 dismissed the appeal and upheld the decree of the learned trial Court; hence, the instant revision petition.

2. Heard.

3. The legal proposition involved in the present case is that whether a decision rendered on the basis of special oath is appealable or not? In this regard, it can safely be observed that arrangement for disposal of suit/case as agreed by the parties was a sort of compromise, which was lawful and permissible; therefore, the same cannot be assailed through appeal, as held in Rashid Mahmood v. Mst. Rashida Begum and 2 others (2010 Y L R 218-Lahore).

Moreover, there is nothing on record to divulge that the petitioner was prompted by the respondents or by the learned trial Court to arrange the disposal of lis on the basis of Special oath, rather it was her sweet will to get decided the matter in terms of Special Oath. Therefore, said offer being made voluntarily and accepted by the respondent No.1 is binding upon the petitioner, as already held by this Court in Tasaduq Hussain v. Additional District Judge, District Vehari and 2 others (2010 YLR 3283-Lahore).

When the position was as such, the offer so made by the petitioner to the respondent No.1 is binding upon her and she cannot resile from the same, she has to face the consequence of the same. Reliance can also be placed on Maulana Muhammad Idrees v. Fazal Said Khattak and others (2009 CLC 241-Peshawar) and even the petitioner has failed to plead any circumstance which might show that offer made by her was the result of her emotional behaviour or that offer and acceptance had given rise to any void agreement, therefore, she has to bear the result of her offer and the same is binding upon her as was held in judgment reported as Inayat Hussain alias Inayatullah v. Chaudhry Sultan Ahmad (2010 CLC 596-Lahore).

4. Besides, the petitioner took a stance that deceased Shafqat Rasool divorced the respondent No.1 through Talaq-e-Bian on 13.12.2002 but as per observations of the learned appellate Court, there were two divorce deeds of different dates on record of the concerned Union Council: one was issued on 13.12.2002 and other one issued on 03.09.2004 by the deceased Shafqat Rasool in presence of the witnesses namely Muhammad Ilyas son of Mian Ahmad Din and Rana Tariq but the petitioner could not produce both the said witnesses in support of her contention especially after a categorical denial and special oath by the respondent No.1 in pursuance to the offer of the present petitioner. The other aspect of keeping the purported proceedings of issuance of effectiveness certificate of Talaq for a considerable period of seven years also speaks volumes after authenticity and veracity of the same, as the first notice of Talaq was issued on 28.05.2011 and divorce effectiveness certificate was issued on 05.10.2011. Moreover, it is also not clear that on which divorce deed the same was issued, because as observed above the learned appellate Court found two divorce deeds of different dates in the record

of Union Council. In this view of the matter, the learned appellate Court has rightly adjudged the matter in hand and has not committed any illegality or irregularity while upholding the order passed by the learned trial Court, warranting interference by this Court in exercise of revisional jurisdiction.

5. For the foregoing reasons, the revision petition in hand comes to naught and the same stands dismissed. No order as to the costs.

JK/R-19/L Revision dismissed.

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